

Senate File 615

H-1200

1 Amend the amendment, H-1198, to Senate File 615, as passed by
2 the Senate, as follows:

3 1. Page 1, after line 8 by inserting:

4 <____. Page 3, line 28, before <MEDICAID> by inserting <WORK
5 WITHOUT WORRY PROGRAM AND>>

6 2. Page 1, after line 9 by inserting:

7 <<Sec. _____. NEW SECTION. 2490.1 Definitions.

8 As used in this chapter, unless the context otherwise
9 requires:

10 1. "*Countable income*" means the income of an individual when
11 the income is received and can be used to meet the individual's
12 needs for food, clothing, and shelter. "*Countable income*" does
13 not include the income of another member of the individual's
14 household, or certain receipts as described in 20 C.F.R.
15 §416.1103.

16 2. "*Department*" means the department of health and human
17 services.

18 3. "*Disability*" means a qualifying disability as determined
19 by the federal social security administration, or the
20 individual is determined by the department to have a physical
21 or mental impairment, or combination of impairments, that have
22 lasted or are expected to last for at least twelve months or
23 result in death.

24 4. "*Long-term services and supports*" means the broad
25 range of health, health-related, and personal care assistance
26 services and supports, provided in home and community-based
27 settings, necessary for persons with disabilities who
28 experience limitations in their capacity for self-care due to a
29 physical, cognitive, or mental disability or condition.

30 5. "*Program*" means the work without worry program
31 established in section 2490.3.

32 Sec. _____. NEW SECTION. 2490.2 Program — intent.

33 It is the intent of the general assembly to remove barriers
34 to employment for individuals who, but for income and
35 resources, meet the definition of disability, by providing

1 medical assistance to employed individuals with disabilities
2 through a work without worry program in accordance with section
3 1902(a)(10)(A)(ii)(XIII) of the federal Social Security Act,
4 and Medicaid eligibility, using less restrictive income and
5 resource requirements through the application of section
6 1902(r)(2) of the federal Social Security Act, and cost-sharing
7 requirements established by the department and approved by the
8 centers for Medicare and Medicaid services of the United States
9 department of health and human services.

10 Sec. _____. NEW SECTION. **2490.3 Program — established.**

11 1. The work without worry program is established under the
12 medical assistance program and shall be administered by the
13 department to provide employed individuals with disabilities
14 access to health care coverage through the medical assistance
15 program.

16 2. Except as otherwise specified in this chapter,
17 provisions applicable to the medical assistance program
18 pursuant to chapter 249A shall be applicable to the program.

19 3. In addition to the benefits received under the program,
20 an individual shall have access to all traditional Medicaid
21 services under the medical assistance program, as well as
22 additional long-term services and supports and community-based
23 services, including waiver services, for which the individual
24 meets any applicable level of care requirements.

25 4. The department shall make every effort to coordinate
26 benefits with the health care coverage provided by an employer
27 of an employed individual with a disability receiving benefits
28 under this chapter.

29 Sec. _____. NEW SECTION. **2490.4 Program — eligibility.**

30 1. Except as otherwise provided in this chapter, an
31 individual may participate in the program if the individual
32 meets all of the following criteria:

33 a. The individual is eligible for the medical assistance
34 program under chapter 249A.

35 b. The individual is at least eighteen years of age.

1 *c.* The individual is less than sixty-five years of age.
2 *d.* The individual has a disability.
3 *e.* The individual is employed, earns income from employment
4 which may include self-employment, and works at least one hour
5 per month.

6 2. The department shall not adopt a rule for program
7 eligibility based upon any of the following:
8 *a.* An individual's income or resources.
9 *b.* A resource test or limit.
10 *c.* An individual's receipt of federal disability benefits.

11 3. An individual who receives supplemental security
12 income shall be automatically eligible for the program and may
13 participate in the program.

14 4. An individual may be eligible for or receive other health
15 care coverage including through an employer, through Medicare,
16 or through the medically needy program, the qualified Medicare
17 beneficiary program, or the specified low-income Medicare
18 beneficiary program. If the individual has such other coverage
19 and is subject to payment of copayments or premiums for that
20 coverage, notwithstanding the premium requirements under the
21 program to the contrary, the individual shall not be subject to
22 payment of premiums otherwise applicable under the program.

23 Sec. _____. NEW SECTION. **2490.5 Program — premiums.**

24 1. An individual's monthly program premium amount shall
25 equal, rounded down to the nearest whole dollar, any of the
26 following:
27 *a.* If the individual's verified countable income is less
28 than one hundred fifty percent of the federal poverty level
29 applicable to the individual's household's size, zero percent
30 of the individual's verified countable income.
31 *b.* If the individual's verified countable income is between
32 one hundred fifty percent and two hundred fifty percent of
33 the federal poverty level applicable to the individual's
34 household's size, three percent of the individual's verified
35 countable income.

1 *c.* If the individual's verified countable income is more
2 than two hundred fifty percent of the federal poverty level
3 applicable to the individual's household's size, six percent of
4 the individual's verified countable income.

5 2. *a.* An individual shall report any change in the
6 individual's countable income to the department.

7 *b.* The department shall utilize the individual's verified
8 countable income until the individual reports a change in
9 countable income and the change is processed by the department,
10 unless there is good cause for the department's delay in
11 verifying the change in the individual's countable income.

12 *c.* A change in an individual's program premium amount shall
13 be effective the month after the change in the individual's
14 countable income is reported to and verified by the department.

15 3. An individual shall be covered under the program for
16 six consecutive months beginning the first day of the month in
17 which the department approves the individual's application for
18 the program.

19 4. The department shall create a six-month grace period that
20 provides continuous program coverage to an individual following
21 the individual's temporary loss of employment, or a health
22 crisis that temporarily prevents the individual from continuing
23 employment. The individual shall be required to continue to
24 pay the program premium based on the individual's verified
25 countable income during the six-month grace period.

26 5. The department may terminate an individual's program
27 coverage if the individual fails to pay four consecutive months
28 of program premiums.

29 6. An individual must pay a program premium in full for any
30 month that program coverage is provided, including a month when
31 a redetermination of coverage is made, a month when continued
32 coverage is requested, and during the period of an eligibility
33 determination appeal.

34 Sec. _____. NEW SECTION. **2490.6 Rules.**

35 The department shall adopt rules pursuant to chapter 17A to

1 administer this chapter.

2 Sec. _____. WORK WITHOUT WORRY PROGRAM — DEPARTMENT OF HEALTH
3 AND HUMAN SERVICES.

4 1. The department of health and human services shall submit
5 any waiver request or state plan amendment, or combination
6 thereof, to the centers for Medicare and Medicaid services of
7 the United States department of health and human services as
8 necessary to create a work without worry program in accordance
9 with this Act.

10 2. Any individual participating in the Medicaid for
11 employed persons with disabilities program when the work
12 without worry program is implemented shall be transferred to
13 and enrolled in the work without worry program.>>

14 3. Page 1, after line 22 by inserting:

15 <<Sec. _____. EFFECTIVE DATE. This division of this Act,
16 being deemed of immediate importance, takes effect upon
17 enactment.>>

18 4. By renumbering as necessary.

TUREK of Pottawattamie